

IN THE SUPREME COURT OF
BANGLADESH
HIGH COURT DIVISION
(CRIMINAL APPELLATE JURISDICTON)

Present:

Mr. Justice Mustafa Zaman Islam
And

Mr. Justice Md. Aminul Islam

Criminal Appeal No. 1166 of 2002

Md. Hanif alias Senikka

.....Convict

appellant.

-Versus-

The State.

.....Respondent.

Criminal Appeal no. 1208 of 2002

Md. Shafique

.....Convict -appellant.

-Versus-

The State.

.....Respondent.

Criminal Misc. case no. 5365 of 2004

Md. Shafi

.....Convict -petitioner.

-Versus-

The State.

.....opposite party.

Mr. A.K.M. Nurul Islam, Advocate

.....For the Convict -Appellants.

Mr. Md. Sarwar Hossain Bappi, D.A.G. with

Mr. Mohammad Shah Newaj, A.A.G and

Mr. Md. Anichur Rahman, A.A.G.

...For the State.

Heard on: 24.08.2023 and

Judgment on: 29.08.2023.

Mustafa Zaman Islam, J:

These two Criminal appeals and one Criminal Misc. case arising out of self same judgment and order of conviction and sentence dated 11.04.2022, and all three cases taken up for hearing analogously and disposed of by a single judgment.

These Criminal Appeals and Criminal Misc. case are directed against the Judgment and order of conviction and sentence dated 11.04.2022 passed by the learned Special Tribunal and Additional Metropolitan Sessions Judge, 5th Court, Chattogram in Special Tribunal Case No. 26 of 2001 arising out of G.R No. 755 of 2000 corresponding to Bandar Police Station Case No. 06 dated 04.07.2000 convicting the accused appellants and petitioner under section 19A of the Arms Act, 1878 and sentencing them to suffer rigorous imprisonment for 10 (ten) years and also to pay a fine of tk. 10,000/- (ten thousand) each in default to suffer rigorous imprisonment for 5(five) months more.

Prosecution case, in short, are that on secret information that some terrorists were staying with arms in the house of Ali Ahmed Chowdhury at Halishar for committing cognizable offence, the informant along with his forces went to the said house on 04.07.2000 at about 1.50 hours at night, the

informant party reached therein and managed to apprehend accused Md. Hanif alias Sennikka and Md. Shafique caught red handed from the roof and on interrogation they disclosed that there were same illegal arms in the possession of co-accused Md. Shafiue and accordingly, illegal arms were recovered from the possession and control of accused Shafique and the informant seized the said arms in presence of the witnesses prepared seizure list. Hence, the case.

On the basis of aforesaid FIR, the police started investigation of the case, during investigation he visited the place of occurrence and made sketch map of the place of occurrence along with its separate index.

After completion of investigation the investigating officer also submitted charge sheet under section 19A of the Arms Act, 1878 against the accused persons. At the time of trial the case record was sent to the learned Special Tribunal and Additional Metropolitan Sessions Judge, 5th Court, Chattogram for hearing and disposal and it was registered as Special Tribunal case no. 26 of 2001. During trial charge was framed against the accused persons under section 19A of the Arms Act, 1878 and the same was read over and explained to

the accused persons in the dock, but they pleaded not guilty thereto and claimed to be tried in accordance with law.

During trial the prosecution to prove its case, examined as many as 12 witnesses while the defence examined none. The defence case is that the accused persons are innocent and no occurrence as took place as alleged by the prosecution and they have been falsely implicated in the case out of previous enmity. After conclusion of trial on consideration of the materials on record the learned Special Tribunal and Additional Metropolitan Sessions Judge, 5th Court, Chattogram convicted the accused appellants along with convict-petitioner and sentenced them as aforesaid.

After trial the learned Special Tribunal convicted 3(three) accused holding that- (1) the prosecution successfully proved the charge under sections 19A/19(f) of the Arms Act against the 3 convicts however, no penalty was awarded under section 19(f) of the Arms Act. (2) It is proved by the evidence of the police personnel that is P.Ws- 3, 4, 6, 7, 10 and 11 who were member of patrol party that the accused Md. Hanif and accused Shafi had direct knowledge of recovered three gun but the gun recovered from the exclusive possession and control

of the accused Shafique. (3) The evidences of prosecution witnesses are consistent, uniform and corroborative with each other with all material particulars.

Mr. A.K.M. Nurul Islam, the learned Advocate appearing on behalf of the appellants submits that the order of conviction and sentence passed by the learned Special Tribunal and Additional Metropolitan Sessions Judge, 5th Court, Chattogram is illegal and against the weight of evidence and as such the impugned order of conviction and sentence is liable to be set aside. He submits that the prosecution failed to consider the defence case and admittedly as per evidence on record occurrence took place in the agriculture land which belongs to accused persons and thus non-consideration of defence case has seriously prejudiced and thus considering the facts and circumstances of the case they are entitled to get the benefit of doubt resulting in their acquittal. He submits that nothing has been recovered from the exclusive possession of the accused-appellants. He submits that there is no legal evidence against the convict petitioner for sustaining the order of conviction and sentence and as such the impugned order of conviction and sentence is liable to be set

aside. He submits that all the prosecution witnesses are interested and partisan in nature and thus the learned Special Tribunal and Additional Metropolitan Sessions Judge, 5th Court, Chattogram should have discarded their testimony out of consideration.

On the other hand, Md. Sarwar Hossain Bappi, the learned Deputy Attorney General and Mohammad Shah Newaj, the learned Assistant Attorney General appearing on behalf of the state opposes these appeals as well as rule. He submits that the submission of the learned Advocate for the appellants are not based on evidence on record, as such, the impugned judgment and order of conviction deserves no interference by this court.

In order to appreciate their submissions we have gone through the record and given our anxious consideration to their submissions.

Let us now weigh and sift the evidence on record as adduced by the prosecution to prove the charge.

PW1, SI Md. Shanjur Rahman, he deposed that at one point he mentioned that on the basis of secret information on 04.07.2000, a number of terrorists were sitting under the roof

top a one man name Ali Ahmed near the top of the Madhyam Halishahor and were connivance for a serious cognizable offence and immediately reported the said news to the Assistant Commissioner of police, DB and to registrar a GD entry, pursuant to that under the leadership of Senior Assistant Commissioner, DB including informant along with other forces rushed to the spot and after reaching the spot during the searching of the house, two terrorists were found on the roof top of the house and arrested them, and interrogation, they told their names as Hanif and Shafi. On query, they discharged that there are some illegal arms in the possession of accused Md. Shafique and accordingly, illegal arms were recovered from the possession and control of accused Shafique and at his showing 3 gun were recovered.

In his cross examination, he stated that the arms with bullets were recovered from the house of Md. Shafique. He denied the suggestion that they did not recover the alleged arms with bullets from them.

PW2- SI Mohiuddin, he deposed that at the point he mentioned that on 04.07.2000, SI Bazlul Karim, DB came to know through secret information that Bandar Police Station

Madhyam Halishahor one Ali Ahmed's house some terrorist, were discussion to commit crime on the roof top of the house, on hearing of the news, he along with other forces particularly informant as P.W-11 SI A.K.M Mohiuddin, P.W-7, SI Abdur Rob, P.W-1 Shanjur Rahman, P.W-1 SI Obaidul Haque, P.W-3 SI Moshiur Rahman went to the occurrence place and surrounded the Ali Ahmed's house and on the roof of the building Hanif and Shafi, son of late Imam Sharif saw discussion each other, when they were interrogated about the illegal arms, at one stage, they disclosed that they had kept some of the arms their associates accused Md. Shafique son of Abdul Hashem and they along with forces, quickly rushed for shafiq's house with the accused and according to the identification of accused Hanif and Shafi, they apprehended Md. Shafique from bed room in his house and at the present of witnesses accused Hanif and Shafi asked Md. Shafique to give us our arms and bullets and then, accused Md. Shafique kept three country made gun locked 18 inches above his bed room which were opened separately and presented the gun and bullets. SI Bazlul Karim prepared seizure list at the present of witnesses.

In his cross examination, he stated at point that nothing has been as alleged arms recovered from the possession of accused Shafi, son of late Imam Sharif. There is also nothing was recovered as alleged arms from the accused Hanif.

P.W-3 SI, Moshiur Rahman, was not examination in chief and cross examined.

P.W-4, Md. Ashraf Ali, is a local seizure list witness, he deposed that at the time of incident was 2.00 to 2.30 a.m. He is a ricksha puller, after ending, he came home at 12.00 to sleep, the police called up from sleep at 2.30 a.m and took the white paper for thump impression. He has been declared hostile by the prosecution.

PW-5 Md. Abul Kashem is also a local seizure list witness. He has been declared hostile by the prosecution.

PW-6 SI Bazlul Karim, who lodged the FIR and also member of raiding party, he corroborated the FIR story.

In his cross examination, he stated that-

“আমি এই মামলায় এজাহার দেখিয়াছি। আমি আলী আহমদের বাড়ী সম্পর্কে খেয়াল নাই। ছাদের উপর হইতে সফিদের নিকট হইতে ভাল অস্ত্র উদ্ধার করা হয় নাই। সফি, পিতা-ইমাম শরীফের নিকট হইতে কোন অস্ত্র উদ্ধার করা হয় নাই।”

PW7, SI Md. Nizam Uddin, he deposed that he attached to CMP. DB at the relevant time. At that time at about 1.30 a.m. on the basis of secret information that Bandar Police Station, Madhyam Halishahor, Washim Chowdhury's area of Ali Ahmed house, some terrorists were discussion to commit crime. On the basis of the said news, all forces under the leadership of Assistant Commissioner rushed to the spot and on arrival arrested two persons and after interrogation them to give their names as Hanif and Shafi. They also disclosed that they kept the arms with bullets to other associates namely Md. Shafique, then, they quickly took the accused to the house of the accused Shafique and after being found him in his house accused Hanif, and Shafi asked Shafique to give them the arms with bullets you have, then accused Md. Shafiq took out the locked 18 inches long arms and bullets from the bed room of his house.

In his cross, he stated that at one point that no arms was recovered from the house of Ali Ahmed and neither was any arms with bullets recovered from accused Hanif nor anything was recovered from accused Shafi.

PW-8, Md. Obaidul Haque has been declared Tendered by the state.

PW9- SI Md. Omar Faruk, the deposed that on 04.07.2000 in the director of AC, DB who took over the case for investigation and during investigation, he visited the place of occurrence and prepared sketch map and index and recorded the statement of witnesses under section 161 by the code. The accused was arrested and sent him in to the court and the police remanded him for questioning.

P.W-10, SI Md. Sajjad Hossain, he deposed that on 04.07.2000 he attached to DB office. On the basis of secret information, he is a member of raiding party along with associate forces rushed to place as Ali Ahmed house, they arrested Hanif and Shafi. They disclosed arms and bullets were in Shafique house and three gun with one LG and some bullets were recovered from the bed room of the Shafique.

In his cross examination, he stated that no arms were recovered from accused Hanif and Shafi. He denied the suggestion that arms were not recovered from the accused Shafique.

P.W-11, SI A.K.M Mohiuddin, he deposed that at one point mentioned that on 04.07.2000 he was attached at DB office. On the basis of secret information by SI Bazlul Karim, under the leadership of AC, DB, detective branch being dairy no. 4, along with other forces under Bondar Police Station of Ali Ahmed house, they surrounded that home and arrested Hanif and Shafi from the rooftop. After their arrest, on quarry about arms, they disclosed that their other associate name Shafique kept some arms and immediately went to Shafique's house and apprehended him. According to the identity of the arrested accused, Md. Shafique was arrested who showed arms in front of the witnesses present.

In his cross examination he stated that when accused Hanif and Shafi were arrested on the rooftop, no arms were recovered from them.

P.W-12, SI, Md. Abdur Rob was the investigating officer in this case. He deposed that on 04.09.2000, he was attached with DB office at the relevant time. On the direction of the Assistant Commissioner, DB, he was entrusted with the investigation of the case. During investigation, he visited the place of occurrence, he reviewed the sketch map and index

prepared by his predecessor Mr. Omar Faruk as investigating officer and recorded the witnesses under section 161 of the code. After investigation, he submitted charge sheet accompanying the accused.

In his cross examination, he denied the suggestion that without proper investigation he submitted a faulty charge-sheet.

There are all of the evidence on record addressed by the prosecution to prove the charge.

The core question which falls for determination in this appeal along with revision is whether the Judgment and order of conviction for offence under section 19A of the Arms Act, 1878 and sentence can be sustained on evidences, materials on record, fact and circumstances of the case and to ensure proper dispensation of Criminal Justice.

On going to the evidence on record it appears that during trial the prosecution in all examined 12 witnesses out of them P.W-4 and P.W-5 are local seizure list witnesses. In their presence the incriminating arms with bullets were seized by P.W-6 SI Bazlul Karim. P.Ws 1-3, 8 and 10-11 were official witnesses as police personnel and also member of

raiding party. At the time of recovery of arms with bullets, the official witnesses were present.

On perusal of the evidence on record it transpires that prosecution case was absolutely rest upon the evidence of P.Ws- 6, 8 and 10-11 who were corroborated to P.Ws 1-3. All the official witnesses raised one voice that P.W-1 SI Md. Shanjur Rahman, he deposed that at one point he mentioned that on the basis of secret information on 04.07.2000, a number of terrorists were sitting under the roof top a one man name Ali Ahmed near the top of the Madhyam Halishahor and were connivance for a serious cognizable offence and immediately reported the said news to the Assistant Commissioner of police, DB and to registrar a GD entry, pursuant to that under the leadership of Senior Assistant Commissioner, DB including informant along with other forces rushed to the spot and after reaching the spot during the searching of the house, two terrorists were found on the roof top of the house and arrested them, and interrogation, they told their names as Hanif and Shafi. On query, they discharged that there are some illegal arms in the possession of accused Md. Shafique and accordingly, illegal arms were

recovered from the possession and control of accused Shafique and at his showing 3 gun were recovered.

It is apt here that all the official witness of the prosecution have not mentioned the recovery of alleged arms with bullets from accused Hanif and Shafi in their cross examination. Particularly, P.W-6 SI Bazlul Karim who lodged FIR and prepared seizure list, at one stage of his cross examination, he pointed out that he could not say at this time whose handwriting was written by FIR and that the seizure list was prepared by SI Nizam, one of the member of the raiding party who examined as P.W-7.

Suffice it to say that there is absolutely no reason to disbelieve the consistent and corroboration evidence of those official witnesses as well as member of the raiding party having no reason whatsoever to depose falsely against the appellant Md. Shafiq, son of Md. Hashem. The defence extensively cross examined them but nothing could be elicited to shake their credibility in any manner whatsoever in respect of appellant Md. Shafiq. So the same are invulnerable to the credibility against appellant Md. Shafiq. Therefore, we find that there are cogent convincing and unimpeachable evidence on record regarding

complicity of accused appellant Md. Shafiq in respect of commission of offence that is recovery of arms and bullets.

It is significant to point out that there are consistent and uniform evidence that the appellant Md. Shafiq had exclusive control and possession over the arms and bullets. The prosecution successfully proved the charge against the appellant Md. Shafiq beyond all reasonable doubt.

Having considered the facts and circumstances of the case and forgoing narrative, we are of the view that the prosecution failed to prove the appeal against the Md. Hanif @ Senikka and against convict petitioner the Md. Shafi beyond all reasonable doubt and the appeal against the appellant Md. Shafique successfully proved beyond all reasonable doubt. So, the impugned Judgment and order of conviction and sentence so far as it relates to the appellant Md. Shafique, son of Md. Hashem be sustained. Convict appellant Md. Shafique is therefore, found guilty under section 19A of the Arms Act, 1878. His conviction and sentence is upheld.

In the result, the appeal no. 1166 of 2002 is allowed against convict appellant Md. Hanif @ Senikka. The appeal no. 1208 of 2002 preferred by Md. Shafique is dismissed. The Criminal Miscellaneous case being no. 5365 of 2004 preferred

by Md. Shafi, son of Md. Imam Sharif is made absolute. The judgment and order of conviction and sentence dated 11.04.2002 passed by the learned Special Tribunal and Additional Metropolitan Sessions Judge, 5th Court, Chattogram is hereby maintained so far as it relates to appellant Md. Shafique, son of Md. Hashem. We allowed the appeal and set-aside the conviction and sentence of the appellant namely Md. Hanif @ Senikka and convict petitioner Md. Shafi, son of Md. Imam Sharif, they are acquitted from the charge leveled against them. Let those appellant and petitioner be set at liberty forthwith if not wanted in connection with any other case.

The convict appellant Md. Shafique is directed to surrender immediately within 30 days from the receipt of the judgment and order for served out the remaining sentence, if any.

Send down the LCR at once with the copy of this judgment.

(Mustafa Zaman Islam, J:)

Md. Aminul Islam, J:

I agree.

(Md. Aminul Islam, J:)